



United States
Attorney's Office
District of Montana



Former nurse practitioner in Butte sentenced to five years in prison, ordered to pay more than \$600,000 restitution for health care fraud



Friday, January 17, 2025

For Immediate Release

U.S. Attorney's Office, District of Montana

MISSOULA — A former nurse practitioner in Butte was sentenced today to five years in prison, to be followed by three years of supervised release, for falsely billing an insurance company approximately \$62 million for vitamin B-12 injections in which she received approximately \$613,108 for the false claims, U.S. Attorney Jesse Laslovich said today.

The defendant, Tristan Ashley Svejkovsky, 41, pleaded guilty in August 2024 to health care fraud and to use of a registration number issued to another person.

U.S. District Judge Donald W. Molloy presided. The court also ordered \$613,108 in restitution. The court allowed Svejkovsky to self-report to the U.S. Marshals Service.

The government alleged in court documents that Svejkovsky was a nurse practitioner whose license was suspended by the Montana Board of Nursing on April 1, 2022. Svejkovsky continued to prescribe controlled substances using her own name and Drug Enforcement Administration registration number until June 2022. After contact by the DEA, Svejkovsky agreed to voluntarily surrender her DEA registration. However, Svejkovsky continued to prescribe controlled substances using the name and DEA registration number of a friend who also was nurse practitioner. Svejkovsky misrepresented to her friend that her nursing license was on probation, not suspended, and that she would not use her friend's information to prescribe drugs. In fact, Svejkovsky used her friend's DEA registration number to write at least 28 prescriptions for controlled substances.

The government further alleged that Svejkovsky falsely billed Blue Cross Blue Shield of Montana for 158 vitamin B-12 injections that did not occur and stole \$613,108 from the insurance company. In August 2021, Svejkovsky started falsely increasing the number of units of a standard vitamin B-12 injection from

one unit to 1,000 units, thereby increasing the payment from the insurance company for each injection from roughly \$4.88 to \$4,880. After her license was suspended, Svejkovsky started submitting numerous such claims each month to Blue Cross Blue Shield of Montana by backdating claims to supposedly before her license was suspended. This conduct continued through May 2022, when Svejkovsky submitted four claims, this time claiming \$15 million per vitamin B-12 injection to a new patient. In total, Svejkovsky billed the insurance company \$62,310,000 in fraudulent claims for false vitamin B-12 injections and stole \$613,108 from the insurance company.

The U.S. Attorney's Office prosecuted the case. The DEA and FBI conducted the investigation.

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HEALTHCARE FRAUD

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